



CHAPTER lxxxiv.

An Act to empower the Seaham Harbour Dock Company to construct a dock extension and other works to confer upon that Company additional borrowing powers and for other purposes. A.D. 1923.
—
[31st July 1923.]

WHEREAS by the Seaham Harbour Dock Act 1898 (hereinafter referred to as "the Act of 1898") the Seaham Harbour Dock Company (in this Act called "the Company") were incorporated and under the authority of that Act and subsequent Acts the Company are the owners of the harbour and certain docks railways and other works at Seaham Harbour in the county of Durham:

And whereas in order to increase the accommodation and facilities for the export and import of coal and other commodities it is expedient that the Company should be empowered to construct the dock extension and other works by this Act authorised:

And whereas under the Act of 1898 the authorised capital of the Company was four hundred and fifty thousand pounds and the Company were authorised to raise by borrowing on mortgage or by the creation and issue of debenture stock the sum of one hundred and fifty thousand pounds which sum was to be reduced in respect of the exercise by the Company of certain powers conferred by the said Act of paying during the construction of the works thereby authorised interest out of capital on moneys raised by the issue of shares:

And whereas in consequence of the exercise by the Company of such powers as last aforesaid and of the

[Ch. lxxxiv.] *Seaham Harbour Dock* [13 & 14 GEO. 5.]
Act, 1923.

A.D. 1923. — creation by them of certain rentcharges the sum authorised by the Act of 1898 to be raised by borrowing on mortgage or by the creation and issue of debenture stock was reduced to one hundred and twenty-nine thousand five hundred and eighty-five pounds :

And whereas under the powers hereinbefore referred to the Company have raised the sum of four hundred and fifty thousand pounds by the creation and issue of ordinary shares and preference shares and the sum of one hundred and twenty-nine thousand one hundred and thirty pounds by the creation and issue of debenture stock :

And whereas by the Seaham Harbour Dock Act 1908 (hereinafter referred to as " the Act of 1908 ") the Company were authorised to raise additional capital to the amount of ninety thousand pounds and in respect of that additional capital to borrow or raise by the creation and issue of debenture stock the sum of thirty thousand pounds :

And whereas the Company are unable to raise money by the issue of additional capital and accordingly the powers of borrowing conferred by the Act of 1908 are not available and it is expedient that the powers of the Company of borrowing money in respect of the capital issued under the powers of the Act of 1898 and in respect of any capital issued under the powers of the Act of 1908 should be increased :

And whereas it is expedient that the other provisions contained in this Act should be made :

And whereas the purposes of this Act cannot be effected without the authority of Parliament :

And whereas plans and sections showing the lines situation and levels of the works by this Act authorised and the lands in or through which they will be made and a book of reference to those plans containing the names of the owners or reputed owners lessees or reputed lessees and of the occupiers of such lands have been deposited with the clerk of the peace for the county of Durham and are in this Act referred to as the deposited plans sections and book of reference :

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords

[13 & 14 GEO. 5.] *Seaham Harbour Dock* [Ch. lxxxiv.]
Act, 1923.

Spiritual and Temporal and Commons in this present A.D. 1923.
Parliament assembled and by the authority of the same —
as follows (that is to say):—

PART I.

PRELIMINARY.

1. This Act may be cited as the Seaham Harbour Short title.
Dock Act 1923.

2. This Act is divided into Parts as follows (that is Act divided
to say):— into Parts.

Part I.—Preliminary.

Part II.—Works and Lands.

Part III.—Finance and Miscellaneous.

3. Subject to the provisions of this Act the pro- Applying
visions of the Companies Clauses Consolidation Act 1845 certain pro-
with respect to the several matters following (that is visions of
to say):— Companies
Clauses

The borrowing of money by the Company on Acts.
mortgage or bond;

The giving of notices; and

The provision to be made for affording access to the
special Act by all parties interested:

And Part III. (relating to debenture stock) of the Com-
panies Clauses Act 1863 as amended by subsequent Acts
shall apply to the moneys by this Act authorised to be
raised by borrowing on mortgage and to the Company in
respect thereof.

4. In this Act unless the subject or context other- Interpret-
wise requires terms to which meanings are assigned by tation.
the enactments incorporated herewith have the same
respective meanings And—

“The Company” means the Seaham Harbour Dock
Company;

“The Act of 1898” means the Seaham Harbour
Dock Act 1898;

“The Act of 1908” means the Seaham Harbour
Dock Act 1908;

“The existing Acts” means the Act of 1898 the Act
of 1908 the Seaham Harbour Dock Act 1917 and
the Seaham Harbour Dock Act 1920.

[Ch. lxxxiv.] *Seaham Harbour Dock* [13 & 14 Geo. 5.]
Act, 1923.

A.D. 1923.

PART II.

WORKS AND LANDS.

Power to
construct
works.

5. Subject to the provisions of this Act the Company may make and maintain in the lines shown on the deposited plans and according to the levels shown on the deposited sections the following work in the urban district of Seaham Harbour in the county of Durham (that is to say) :—

An extension or enlargement of the existing South Dock of the Company at the southern end thereof.

Power to
make sub-
sidiary
works.

6. Subject to the provisions of this Act the Company may make erect place and maintain all such buildings railways works engines machinery and appliances as the Company may deem necessary or convenient for or incidental to the works by this Act authorised or any of them or the construction maintenance repair renewal and use thereof.

Limits of
deviation.

7. In constructing the works by this Act authorised the Company may deviate laterally from the lines thereof as shown on the deposited plans to any extent not exceeding the limits of deviation shown on those plans and they may deviate vertically from the levels of the said works as shown on the deposited sections to any extent not exceeding ten feet.

Power to
alter pipes
&c.

8.—(1) In executing the works authorised by this Act the Company subject to the provisions of this Act may raise sink or otherwise alter the position of any sewer drain water pipe or gas pipe and also any pipe tube wire or apparatus laid down or used for conducting electricity for any purpose and may remove any other obstruction causing as little detriment and inconvenience as circumstances admit and making reasonable compensation for damage caused by the execution of the powers of this enactment :

Provided that nothing in this Act shall extend to or authorise any interference with any works of any undertakers within the meaning of the Electricity (Supply) Acts 1882 to 1922 to which the provisions of section 15 of the Electric Lighting Act 1882 apply except in accordance with and subject to the provisions of that section :

[13 & 14 GEO. 5.] *Seaham Harbour Dock* [Ch. lxxxiv.]
Act, 1923.

Provided also that the Company shall not raise sink or otherwise alter or interfere with any telegraphic line (as defined by the Telegraph Act 1878) belonging to or used by His Majesty's Postmaster-General except in accordance with and subject to the provisions of the said Act. A.D. 1923.
—

(2) In any case in which compensation is payable under the provisions of this section the amount of such compensation shall failing agreement be determined by a single arbitrator to be agreed upon between the Company and the party claiming compensation or failing such agreement to be appointed on the application of either party (after notice in writing to the other of them) by the Minister of Transport and subject as aforesaid the provisions of the Arbitration Act 1889 shall apply.

9. The works by this Act authorised and the subsidiary works connected therewith respectively and all lands appropriated by the Company for the purposes thereof shall form part of the undertaking of the Company and subject to the provisions of this Act the Company shall have and may exercise and enjoy in over upon and in relation to the same the like rights powers and privileges (including the power to demand and take dues tolls rates and charges) and shall be subject to the like duties obligations and liabilities in relation to the said works as if the same had been authorised by and constructed under the powers of the existing Acts. Works to form part of undertaking.

10. Subject to the provisions of this Act the Company may for the purposes of the works by this Act authorised appropriate and use any lands for the time being belonging to them. Power to appropriate lands for works.

11. Subject to the provisions of this Act the Company may in connection with or for the purposes of the execution of the works by this Act authorised or the exercise of the powers by this Act conferred upon them close the existing South Dock and discontinue the use thereof for the accommodation of vessels for such period as they may deem necessary or expedient. Power to close existing South Dock temporarily.

12. Subject to the provisions of this Act the Company may construct or execute and maintain repair and renew upon any lands for the time being belonging to them all such works as they may deem necessary or Power to construct sea defence works.

[Ch. lxxxiv.] *Seaham Harbour Dock* [13 & 14 GEO. 5.]
Act, 1923.

A.D. 1923. — expedient for preventing erosion or encroachment by the sea of or upon any lands upon which the docks or railways or any other works or buildings of the Company are constructed or erected or any other lands for the time being belonging to them.

Works
below high-
water mark
not to be
constructed
without
consent of
Board of
Trade.

13. The Company shall not under the powers of this Act construct in on under or over the shore of the sea or of any creek bay arm of the sea or navigable river communicating therewith where and so far up the same as the tide flows and reflows any work without the previous consent of the Board of Trade to be signified in writing under the hand of one of the secretaries or assistant secretaries of the Board of Trade and then only according to such plan and under such restrictions and regulations as the Board of Trade may approve of in writing under hand as last aforesaid and where any such work may have been constructed the Company shall not at any time alter or extend the same without obtaining previously to making any alteration or extension the like consent or approval. If any work be commenced altered extended or completed contrary to the provisions of this section the Board of Trade may abate and remove the same and restore the site thereof to its former condition at the costs and charges of the Company and the amount of such costs and charges shall be a debt due from the Company to the Crown and shall be recoverable as a Crown debt or summarily.

Company to
submit
accounts to
Ministry of
Transport.

14. The Company shall within seven days after the holding of the general meeting of the Company in each year at which the accounts for the preceding financial year relating to their undertaking are approved by the shareholders of the Company send to the Minister of Transport a copy of those accounts as so approved.

Crown
rights.

15. Nothing in this Act affects prejudicially any estate right power privilege or exemption of the Crown and in particular nothing herein contained authorises the Company to take use or in any manner interfere with any portion of the shore or bed of the sea or of any river channel creek bay or estuary or any land hereditaments subjects or rights of whatsoever description belonging to His Majesty in right of His Crown and under the management of the Commissioners of Woods or of the Board of Trade respectively without the consent in writing of the

Commissioners of Woods or the Board of Trade as the case may be on behalf of His Majesty first had and obtained for that purpose (which consent the said Commissioners and Board are hereby respectively authorised to give). A.D. 1923.
—

PART III.

FINANCE AND MISCELLANEOUS.

16.—(1) The Company may subject to the provisions of this Act but without the certificate of a justice of the peace at any time after the passing of this Act borrow on mortgage of their undertaking in respect of the capital issued under the authority of the Act of 1898 (in addition to the sum of one hundred and twenty-nine thousand one hundred and thirty pounds already borrowed by the Company in respect of the capital so issued) any sum or sums not exceeding in the whole seventy-five thousand four hundred and fifty-five pounds.

Additional powers of borrowing in respect of existing and authorised capital.

(2) The Company may in respect of any capital issued by them under the authority of the Act of 1908 borrow on mortgage of their undertaking any sum or sums not exceeding in the whole one half of the nominal amount of the shares or stock comprising or forming part of such capital which at the time of borrowing have or has been issued but no sum shall be borrowed in respect of any capital so issued until (a) shares for so much of the instalment of capital in respect of which it is to be borrowed as is to be raised by means of shares have been issued and accepted and one half thereof is paid up and stock for so much of such instalment as is to be raised by means of stock is fully paid up and (b) the Company have proved to the justice who is to certify under the fortieth section of the Companies Clauses Consolidation Act 1845 before he so certifies that such shares or stock have or has been issued and accepted and to the extent aforesaid paid up bonâ fide and are or is held by the persons to whom the same were or was issued or their executors administrators successors or assigns and that not less than one-fifth part of each such share has been paid on account thereof before or at the time of the issue or acceptance thereof and (as respects such shares as aforesaid) that such persons or their executors administrators or assigns are legally liable for the same Upon production

[Ch. lxxxiv.] *Seaham Harbour Dock* [13 & 14 GEO. 5.]
Act, 1923.

A.D. 1923. — to such justice of the books of the Company and of such other evidence as he shall think sufficient he shall grant a certificate that the proof aforesaid has been given which shall be sufficient evidence thereof.

(3) Section 24 (Power to borrow) of the Act of 1898 and section 8 (Power to borrow on mortgage) of the Act of 1908 are hereby repealed.

Applying
certain
provisions
of Act of
1908.

17. The following provisions of the Act of 1908 shall extend and apply to and with respect to the additional borrowing powers conferred by this Act (that is to say) :—

- Section 9 Appointment of receiver;
- Section 10 Debenture stock;
- Section 11 Priority of mortgages and debenture stock over other debts;
- Section 12 Application of moneys;
- Section 13 Receipt in case of persons not sui juris;
- Section 14 Extending certain provisions of Act of 1898 to capital under this Act;
- Section 15 Power to redeem debenture stock;
- Section 16 Interest not to be paid on calls paid up.

Expenses
of Act.

18. The costs charges and expenses of and incident to the preparing applying for obtaining and passing of this Act shall be paid by the Company.

Printed by LEYRE and SPOTTISWOODE, LTD.,

FOR

WILLIAM RICHARD CODLING, Esq., C.V.O., C.B.E., the King's Printer of
Acts of Parliament.

To be purchased through any Bookseller or directly from
H.M. STATIONERY OFFICE at the following addresses :
IMPERIAL HOUSE, KINGSWAY, LONDON, W.C. 2, and 28, ABINGDON STREET, LONDON, S.W. 1;
YORK STREET, MANCHESTER; 1, ST. ANDREW'S CRESCENT, CARDIFF;
or 120, GEORGE STREET EDINBURGH.